

Gaurav Gupta v. Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Lucknow · 15 September 2025 · Writ-C No. 8927 of 2025 · **Writ petition disposed of; petitioners directed to pay outstanding premises dues and recover from the seller.**

HEADNOTE

Under paragraph 4.1 of the Electricity Supply Code, a fresh electricity connection cannot be given until previous dues on the premises are cleared. Purchasers of a house with arrears exceeding ten lakh rupees, and with no connection then operative, were directed to pay the dues indicated by the distribution licensee and recover them from the seller; mandamus for a connection without clearing the arrears was refused.

FACTUAL SUMMARY

The petitioners purchased House No. 511/57-A, Old Badshah Nagar, Nishatganj, Lucknow, from Deepti Yadav by registered sale deed dated 4 December 2023 and applied for mutation and a fresh electricity connection (application No. 1015854122). No connection was then operative; the seller had said she had paid water tax and other dues before the sale. Madhyanchal Vidyut Vitran Nigam refused a connection on the ground that outstanding dues on the premises exceeded ten lakh rupees. The petitioners sought mandamus for a connection and for decision of their representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

fresh connection — previous premises dues

HOLDING

As per paragraph 4.1 of the Electricity Supply Code, unless previous dues on the premises are cleared, no fresh electricity connection can be given. Purchasers of a house with dues exceeding ten lakh rupees were directed to pay those dues as indicated by the distribution licensee and recover them from their seller; mandamus for a connection without clearing the arrears was refused. ¶ 5-6

PRINCIPLE TAGS

arrears-run-with-the-premises Under paragraph 4.1 of the Electricity Supply Code, a fresh electricity connection cannot be given until previous dues on the premises are cleared.. ¶ 5-6